



U.S. Department
of Transportation

Research and
Special Programs
Administration

OCT -6 1993

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11123

EXPIRATION DATE: December 31, 1993

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Dyno Nobel, Incorporated, Salt Lake City, Utah.
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of certain explosives which are prepared in accordance with the Hazardous Materials Regulations in effect as of September 30, 1991 due to unforeseen delays in receiving approvals necessary to meet the communication criteria required by Docket HM-181.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 107, Appendix B (1), Section 171.14(b)(4)(i).
5. BASIS: This exemption is based on Dyno Nobel, Incorporated's application dated September 3, 1993, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to preclude a serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class or Division	Identification number	Packing Group
Explosive, blasting type A	1.1D	UN0081	II
Explosive, blasting type B	1.1D	UN0082	II
Explosive, blasting type E	1.1D	UN0241 or UN0332, as appropriate	II
Detonators, electric	1.1B or 1.4B, as appropriate	UN0030 or UN0255, as appropriate	II
Detonators, nonelectric	1.1B or 1.4B, as appropriate	UN0029 or UN0267, as appropriate	II

OCT -6 1993

Continuation of DOT-E 11123

Page 2

Detonator assemblies	1.1B or 1.4B, as appropriate	UN0360 or UN0361, as appropriate	II
Boosters	1.1D	UN0042	II
Substances, explosive, n.o.s.	1.1D or 1.3C, as appropriate	UN0475 or UN0477, as appropriate	II

7. PACKAGING(S) and SAFETY CONTROL MEASURES: The explosives authorized for shipment under the terms of this exemption are restricted to those explosives which were manufactured by Dyno Nobel, Incorporated and approved by DOT under letters dated September 3, 1993. Each explosive may be packaged, marked and labeled in accordance with the applicable regulations in 49 CFR in effect as of September 30, 1991.
8. SPECIAL PROVISIONS:
- a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
- b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
- c. The requirements of Part 107, Appendix B (1) are hereby waived.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, Rail freight and Cargo vessel.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:
- All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving fire, explosion or loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT -6 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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